

Access to Justice: Role of the Senior Advocate of Nigeria (SAN)*

By

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I

1. I must first congratulate each of you, Senior Advocate of Nigeria (SAN)-designate, for successfully scaling through the rigorous process of consideration for the prestigious title of SAN, an honorific title for a Nigerian lawyer who has demonstrated outstanding professional excellence and distinguished himself in legal advocacy, scholarship, or contributions to legal development. You know already that the Legal Practitioners Privileges Committee (LPPC) confers the rank of SAN as a mark of excellence; and the title signifies a high level of achievement and recognition within the legal profession.

2. As at today, the total number of those conferred with the title of SAN in the country (living and dead) is 899¹. In six days' time, when the 57 of you² will have been sworn in and formally assume and use the SAN title, this number will be 956. The title of SAN is an honour, a privilege bestowed on you. But you did not get it because you were necessarily, or even desirably, the best or the most qualified. Years back, when Hon. Justice M. L. Uwais, GCON was still in office as The Honourable, The Chief Justice of Nigeria (CJN), I was part of a team that visited His Lordship in his office. The question was posed

* A paper presented at the Induction Course for New Senior Advocates of Nigeria, which held in Abuja on 23 September 2025.

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¹ Adebisi Adeyemi, et. al - *Compendium on Senior Advocates of Nigeria 1975 - 2024* (GEM Communications Resources: Lagos), 6th Edition, at pages 27 - 49.

² Alex Enumah - "LPPC Unveils 57 New Senior Advocates of Nigeria", available at <https://www.thisdaylive.com/2025/07/25/lppc-unveils-57-new-senior-advocates-of-nigeria/> as accessed on 12 September 2025.

to him, why the SAN title was not necessarily based on merit. His Lordship answered that the SAN title is a privilege and it is given to those “we choose to give it to”.

3. Only recently, Chief Afe Babalola, SAN, the Proprietor of Afe Babalola University, Ado-Ekiti (ABUAD), is reported as calling for the appointment of all that qualify as SANs (following the practice in England where the title is awarded to all that are qualified for the rank year-in-year-out)³ — evidence that not all qualified candidates get the rank.

4. I am not unmindful of the fact that since then, and over time, the conditions for consideration and hence conferment of the SAN title have been more stringent year after year. And for those who have an academic leaning, it is even worse given that of all the qualified applicants, the LPPC has decided that only one will be conferred with the title every year. The rightness of this stance is an issue for another write-up. Suffice it to say, however, that it is an arguable stance, as arguable as the appointment, *without more*, of SANs directly as Professors in Nigerian Universities, or the appointment of SANs straight to the Supreme Court or even the Court of Appeal.

II

5. I have been asked by your soon to be body, the Body of Senior Advocates of Nigeria (BOSAN), to talk to you on access to justice and your role as SANs in that regard⁴. This role you are to perform in a profession that is now viewed as one with declining professionalism⁵. Dr Oby Ezekwesili, at the 65th Nigerian Bar Association Annual General Conference (NBA-AGC), which held at the International Conference Centre, Enugu from 24 to 29 August 2025, challenged lawyers to stop trading the legal profession and

³ See <https://www.abuad.edu.ng/appoint-all-that-qualify-as-senior-advocates-of-nigeria/> as accessed on 28 August 2025.

⁴ Earlier this year, I had cause give a talk on the role of lawyers in promoting and enhancing labour justice in honour of Hon. Justice Paul Adamu Galumje, JSC (Rtd). See B. B. Kanyip - “Promoting and Enhancing Labour Justice: The Role of Lawyers”, a paper presented in Yola, Adamawa State, on 17 May 2025 at the 2025 Gabriel Adikwu and Company Annual Lecture (in Honour of Hon. Justice Paul Adamu Galumje, JSC Rtd), themed, *The Law, The People and The Court*. Some of the issues I raised in the talk are equally raised in the instant paper.

⁵ In 2013, I was invited by the Kaduna Branch of the Nigerian Bar Association (NBA) to discuss the issue of misconduct in the Legal Profession. See B. B. Kanyip - “Misconduct in the Legal Profession: How Curtailed?”, a discussion paper presented at the 2013 NBA Kaduna Branch Annual Law Week, which held from 26 April to 2 May 2013 at the Nigerian Union of Teachers’ Endwell Conference Centre, Mogadishu Layout, Kaduna.

handing it over to especially the political class, a challenge that is especially directed to the SANs. And Dr Misbau Alamu Lateef, commenting on the same 2025 NBA-AGC, cautions that the legal profession is today one where “social media influence, celebrity status of some so-called ‘celebrity lawyers’, and financial clout appear to be fast-tracking access to ‘legal practice’ and the most prestigious platforms of our Bar events”⁶. But we cannot discuss your role if we do not even know what is access to justice or what it entails.

6. The International Labour Organisation (ILO) in February of this year (2025) constituted a tripartite committee to look into the issue of access to labour justice. The background report⁷ upon which discussions were held was, however, prefaced with a general consideration of the general concept of access to justice. In paragraph 31, this is what the ILO said of access to justice:

⁶ Misbau Alamu Lateef - “My Reflections on the 2025 NBA-AGC: Celebrity, Prestige, and the Soul of Our Legal Profession”, a comment forwarded to a WhatsApp Platform titled, “Legal Academia - Law Teachers I”.

⁷ Governance and Tripartism Department - *Access to Labour Justice for all: Prevention and resolution of labour disputes - Report for the Tripartite Technical Meeting on Access to Labour Justice for All*, (Geneva, 17-21 February 2025) International Labour Office, 2025, © ILO. Also available at [https://www.ilo.org/sites/default/files/2025-01/TMALJ-2025-\[GOVERNANCE-241107-001\]-Web-EN.pdf](https://www.ilo.org/sites/default/files/2025-01/TMALJ-2025-[GOVERNANCE-241107-001]-Web-EN.pdf) as accessed on 26 August 2025, at paragraphs 31 to 49.

Access to justice is a fundamental principle of the rule of law enshrined in SDG 16⁸. It ensures that individuals can make their voices heard, exercise their rights, have access to independent and impartial courts, obtain a remedy and hold decision-makers accountable. It is essential for protecting rights, resolving disputes and ensuring that vulnerable groups and entities are not overlooked, marginalized or abused. Both the right to an effective remedy and the right to justice, at least in a procedural sense, are internationally recognized human rights. They are also prerequisites that help the enforcement of other rights.

7. But the problem is not just about access to justice. Exit is often more of the problem. To Clarence Darrow, “Justice has nothing to do with what goes on in a courtroom; Justice is what comes out of a courtroom”⁹. The problem of enforcement of judgements is even more serious in matters relating to exit from justice. It was Chief Afe Babalola, SAN who intoned that “a party who has successfully obtained a final order or signed judgment against another has only won the first round of the fight”¹⁰. And given the experience in practice, the SANs have a huge hand in post-judgment applications seeking for orders

⁸ The Sustainable Development Goals (SDGs) are:

- Goal 1: End poverty in all its forms everywhere
- Goal 2: End hunger, achieve food security and improved nutrition, and promote sustainable agriculture
- Goal 3: Ensure healthy lives and promote well-being for all at all ages
- Goal 4: Ensure inclusive and equitable quality education and promote lifelong learning opportunities for all
- Goal 5: Achieve gender equality and empower all women and girls
- Goal 6: Ensure availability and sustainable management of water and sanitation for all
- Goal 7: Ensure access to affordable, reliable, sustainable, and modern energy for all
- Goal 8: Promote sustained, inclusive and sustainable economic growth, full and productive employment and decent work for all
- Goal 9: Build resilient infrastructure, promote inclusive and sustainable industrialization, and foster innovation
- Goal 10: Reduce inequality within and among countries
- Goal 11: Make cities and human settlements inclusive, safe, resilient, and sustainable
- Goal 12: Ensure sustainable consumption and production patterns
- Goal 13: Take urgent action to combat climate change and its impacts
- Goal 14: Conserve and sustainably use the oceans, seas and marine resources for sustainable development
- Goal 15: Protect, restore, and promote sustainable use of terrestrial ecosystems, sustainably manage forests, combat desertification, and halt and reverse land degradation, and halt biodiversity loss
- Goal 16: Promote peaceful and inclusive societies for sustainable development, provide access to justice for all, and build effective, accountable, and inclusive institutions at all levels
- Goal 17: Strengthen the means of implementation and revitalize the global partnership for sustainable development

See <https://sdgs.un.org/goals> as accessed on 28 August 2025.

⁹ As quoted in Samuel C. Francis - *Legal Rhetorics: The Book of Wits and Wisdom* (Jonik Associates: Lagos), 2015 at page 176.

¹⁰ Afe Babalola - *Enforcement of Judgments* (Intec Printers: Ibadan) 2003 at page 1

not to enforce judgments. Despite section 287 of the 1999 Constitution, we still have especially SANs filing on behalf of the Central Bank of Nigeria (CBN) in garnishee proceedings that garnishee orders nisi should not be made absolute against the CBN. Pray: is CBN the owner of the money in issue as to oppose the grant of garnishee order absolute? The very moment that court orders are made redundant and ineffective through acts like this, the very basis and credence of our judicial system is gone.

8. In an earlier write-up¹¹, I was able to show, using data from the National Judicial Council (NJC), that case disposal rates across especially the courts of first instance i.e. the Federal High Court (FHC), the National Industrial Court of Nigeria (NICN), the High Court of the Federal Capital Territory (FCT HC) and the State High Courts (SHCs) were abysmally low. For the period up to the 2nd quarter of 2022, both civil and criminal cases, the overall percentage disposal rate of the Federal Courts (the FHC and the NICN) was 9.77%; and also for both the civil and criminal cases, the overall percentage disposal rate of SHCs (including the FCT HC) is 9.98%. What this meant was that for every 100 cases, only about 10 cases were disposed of by the courts. These figures are no different today. Lawyers including senior lawyers generally must share the blame in large measure for this poor state of case disposal rates.

9. The point is that these case disposal rates depict the Nigerian Judiciary as slow, insensitive and outdated. Citizens' confidence in the courts' ability and or willingness not to delay or deny justice becomes eroded. Ultimately, a judicial system bogged down by delay and inefficiency soon loses credibility resulting in fewer citizens submitting to the rule of law and paving the way to self-help and anarchy. As William Penn puts it: "To delay justice is injustice"¹². As it is often intoned: justice delayed is justice denied. Yet the converse may equally be true: justice rushed is justice crushed. After all, do not forget: speed kills. How then do we strike the proper balance? This remains the question for all of us — judges and lawyers.

¹¹ B. B. Kanyip - "Effective Administration of Justice: Perspective from the Bench", a paper presented on 14 March 2023 at the Refresher Course for Judges and Kadis, 13 - 17 March 2023 with the Theme: *Strengthening Judicial Independence and Quality of Judicial Services*, organised by the National Judicial Institute (NJI), and which held at Andrews Otutu Obaseki Auditorium, NJI, Abuja.

¹² As quoted in Samuel C. Francis - *Legal Rhetorics: The Book of Wits and Wisdom* (Jonik Associates: Lagos), 2015 at page 175.

10. In addressing the twin issues of access to, and exit from, justice, His Lordship Peter Affen, JCA, cantillated thus¹³:

[16] Some senior lawyers...have insightfully observed that ‘unlike other jurisdictions, the problem in Nigeria is not access to justice but exit from justice’. This is a fair assessment of the malady of delay at all levels of the Nigerian court system. ‘Access to justice is a wonderful ideal, but more so is ‘exit’. It would seem however, with great respect, that ‘access’ is as much a problem as ‘exit’ in Nigeria: unduly cheap and easy access to the courts encourages abuse and leads to system overload that clog the ‘exit’ pathway. As things stand today, the real challenge with justice delivery in Nigeria is “over-access”; and unless pragmatic steps are taken and workable solutions proffered to check unbridled access to justice, exit from justice will remain a mirage. It should not be difficult to appreciate that once access is granted beyond the capacity of a stadium, for instance, and everyone attempts to exit at the same time, the inevitable outcome will be a stampede!

[17] ...more than 60% percent of the cases pending in our courts (at first instance and appellate levels) have no business being there in the first place if the legal profession in Nigeria (Bar and Bench) took its responsibility to the society seriously. And that is a conservative estimate. A tenant who has not paid rent for three years somehow finds the grace to sue his landlord not to evict him otherwise than by due process of law following the service of a quit notice on him. A defendant in an action under the undefended list (or other summary judgment procedure for debt recovery) who did not file any notice of intention to defend or otherwise disclose a defence on the merit is still at liberty to appeal the eventual decision as of right! And all such actions/appeals compete for pride of place with well-founded, sensitive time-bound commercial disputes pending before poorly paid

¹³ Peter Affen - “Keynote Address @ Justice Summit”, being the text of a Keynote Address that was meant to be delivered (but was not) at a One-Day Justice Sector Summit organised by Nigeria Bar Association (NBA) and Justice Research Institute (JRI) in collaboration with Konrad Adenauer Foundation, United Nations Office on Drugs and Crime (UNODC) and Justice Reform Project (JRP), which held in Abuja, Nigeria on Tuesday, 25 January 2022.

Judges sitting in decrepit courthouses wearing visible emblems of systemic under-investment that extends from the back offices into the courtrooms themselves, and still taking evidence in long hand like Glorified Secretaries! Given this scenario, the very best efforts of individual judges may not (nay, cannot) yield desirable outcomes, and exit from justice will be nigh impossible.

[18] The point to underscore is that we are here confronted with a crisis of numbers i.e. case-overload beyond installed capacity, at least in jurisdictions such as Lagos, Rivers, FCT, etc. We simply do not have enough Judges to cope with the deluge of cases being foisted on the court system daily in the name of access to justice. And even then, prevailing judicial performance evaluation parameters tend to focus on quantity of judgments rather than quality. Where a Judge somehow delivers 25 judgments in a quarter and an equal number of new cases (or more) are assigned to him that same quarter, we are back to square zero in terms of caseload.

11. Even when we talk of access to justice, the real question must be: access to what *kind* or *type* of justice? A common refrain amongst especially the political class is that they got judgment but not justice. What kind of justice is an SAN hoping to get in taking steps to file an appeal (not case stated) to the Supreme Court over a decision of the Court of Appeal that was delivered over a judgment of the National Industrial Court of Nigeria (NICN) when he ought to know (and if he does not actually know then he has no right to bear the title, SAN) that given section 243(4) of the 1999 Constitution and *Skye Bank Plc v. Iwu*¹⁴, and affirmed in *CBN v. Okpanachi & ors*¹⁵, that appeals over the decisions of the NICN end at the Court of Appeal and so cannot proceed to the Supreme Court? This was exactly the issue in *The Governor of Kogi State & anor v. Elder Achuba Simon*¹⁶. We are witnesses to courts now awarding punitive costs on SANs simply because they filed unwarranted appeals in cases where the law has been settled. In fact, in *The Governor of Kogi State*

¹⁴ [2017] LPELR-42595(SC).

¹⁵ [2022] LPELR-59627(SC)

¹⁶ Unreported Appeal No. CA/ABJ/PRE/ROA/C1/630M1/2025, the ruling of which was delivered on 19 August 2025.

& anor v. Elder Achuba Simon, the Court of Appeal deprecated the conduct of the SAN in issue (reminding him that “the law is no respecter of persons, principalities, powers and authorities”), and then awarded cost to be paid personally by the SAN in these words:

...The application lacks merit it is accordingly dismissed with cost of N3,000,000.00 (Three Million Naira) awarded in favour of the Respondent payable by the Applicants’ learned Senior Counsel ADEDAYO ADEDEJI (SAN). Learned Senior Counsel misled the Applicants in this regard. The said cost shall be paid before the Applicants take further step in the proceedings.

12. The Supreme Court recently denounced the filing of unmerited appeals by especially senior counsel. His Lordship Hon. Justice Habeeb Adewale Olumuyiwa Abiru, JSC in the recent decision in *Dikio v. NSITF*¹⁷ intoned thus:

This is an appeal that should never have been filed. From the records of proceedings, the lead counsel to the appellants in this case from the High Court to this court is a Senior Advocate of Nigeria. It is presumed that by reason of the high office holds, a Senior Advocate of Nigeria must have knowledge of rudimentary and basic principles of the Law of Contract. This knowledge, with respect, was not displayed in the conduct of this case from the High Court up to this Court...

...if the learned Silk had studied the judgement of the High Court and read the notices of appeal and the briefs of arguments filed in the Court of Appeal and in this appeal, he would have seen that both appeals were pointless as the High Court did a thorough and an excellent job in analyzing and disposing of the claims of the appellants. This would have saved this Court the agony of hearing an appeal that requires a mere restatement of the elementary Principles of the Law of Contract taught second year university students to resolve. Part of the attendant responsibilities and expectations that should come with the conferment of the rank of Senior Advocate of Nigeria are that counsel so conferred would leave the realm of the lawyers that engage the scarce judicial time of court with the mundane and humdrum cases that require only restatements of elementary legal principles to dispense with, and cases

¹⁷ [2025] 14 NWLR (Pt. 2004) 129 at pages 166 - 167.

that coming to court from the Chambers of such counsel would be one that would excite and challenge existing legal principles and seek to create new jurisprudence. This appeal, and indeed the appeal filled in the Court of Appeal, are not a good testament for the rank of Senior Advocate of Nigeria.

13. The rule is that counsel should have confidence in the success of a case before accepting it¹⁸. A good number of cases are, however, taken up by counsel not really because they believe in the possible success of the cases but for reasons not unassociated with the size of the fee. In *Ezekiel Okoli v. Morecab Finance (Nig.) Ltd*¹⁹, it was expressed that it is the duty of counsel to advise his client on the impropriety of pursuing a hopeless appeal. Cases like *The Governor of Kogi State & anor v. Elder Achuba Simon* show that this is a duty kept more in the breach.

14. And it must be noted that even when cases or appeals are filed especially under the guise of developing the law, this meets the threshold definition of abuse of court process — anything other than the cause of justice qualifies as an abuse or misuse of court process²⁰. I will not be surprised if some of you did not encourage cases especially appeals for the simple reason of getting the required number of (appellate) cases when you were preparing to file in your respective applications for the rank of SAN. That fact, you must note, ranks as an abuse of court process, and does not serve the cause of justice.

15. Prof. Fidelis Oditah, QC, SAN²¹ complained that Nigerian law is excessively and self-destructively procedural, both its civil and criminal justice system obsessed with form rather than substance, and that we take refuge in box-ticking, formulas and catchphrases instead of analysis. What he left unstressed is that lawyers, and often senior ones at that, are those who

¹⁸ *Kallamu v. Gurin* [2003] 16 NWLR (Pt. 847) 493; *Textile Allied Products Ltd v. Henry Stephens Shipping Co. Ltd* [1989] 1 NWLR (Pt. 95) 115; and *Ojo v. Philips* [1993] 5 NWLR (Pt. 296) 751.

¹⁹ [2007] 4 – 5 SC 116. See also *K. R. Textile Allied Products Ltd v. Henry Stephens Shipping Co. Ltd & 2 ors* [1989] 1 NWLR (Pt. 95) 115 CA.

²⁰ *University of Calabar v. Asset Management Corporation of Nigeria & ors* [2024] LPELR-62596(SC).

²¹ Fidelis Oditah - “Legal Practice in Nigeria: Challenges and Solutions”, a paper presented at the Nigerian Bar Association Section on Legal Practice 2022 Annual General Conference held on 4 July 2022 at The Dome, Asaba, Delta State, Nigeria:

move judges to be procedural, to take refuge in form rather than substance, and to box-tick.

III

16. The legal profession globally is not immune from the happenings of today. Dan Hunter²² identified five large-scale changes that have happened or are happening to the legal profession. And as SANs, you must worry about these changes. The changes are:

- (1) Technology solutions moving law from a wholly bespoke service to one that resembles an off-the-shelf commodity;
- (2) Globalisation and outsourcing upending traditional expectations that legal work is performed where the legal need is, and shifts production away from high cost centres to low cost centres;
- (3) Managed legal service providers – who are low cost, technology-enabled, and process-driven – threaten traditional commercial practice;
- (4) Technology platforms diminishing the significance of the law firm; and
- (5) Artificial intelligence and machine learning systems taking over a significant portion of lawyers' work by the end of the 2020s.

17. How we contend with these changes will have an impact to not just to access to justice but to how we intend to pursue our broad economic development as a nation. An interesting piece I recent read (though not on Nigeria, but we learn from it) is Dan Wang's article titled, "A Nation of Lawyers Confronts China's Engineering State", noting that "As the Chinese economy surges forward, the U.S. has lost its capacity for physical improvement"²³. The writer is of the opinion that America lost so much productive capacity to China and so is today in a vulnerable position simply because China is an engineering state, treating construction projects and technological primacy as the solution to all of its problems, whereas the United States is a *lawyerly* society, obsessed with protecting wealth by making rules rather than producing material goods. So while engineers have

²² Dan Hunter - "The Death of the Legal Profession and the Future of Law" (2020) 43(4) *UNSW Law Journal* 1199 - 1225; also available at <https://www.unswlawjournal.unsw.edu.au/wp-content/uploads/2020/11/Hunter.pdf> as accessed on 27 August 2025.

²³ Dan Wang - "A Nation of Lawyers Confronts China's Engineering State", available at <https://www.theatlantic.com/ideas/archive/2025/08/china-america-tariffs-trump-economy/683895/> as accessed on 28 August 2025.

filled the top ranks of China's government from the 1980s onward, "the United States, by contrast, has a government of the lawyers, by the lawyers, and for the lawyers"²⁴. The evidence:

More than half of U.S. presidents practiced law at some point in their career. About half of current U.S. senators have a law degree. Only two American presidents worked as engineers: Herbert Hoover, who built a fortune in mining, and Jimmy Carter, who served as an engineering officer on a Navy submarine...²⁵

18. Our role as members of the legal profession in matters of economic development is accordingly being questioned today. In Nigeria, therefore, some basic questions are self evident: are we "obsessed with protecting wealth [which happens to be in the hands of a few] by making rules rather than producing material goods [which should benefit the generality of the populace]? As a nation, are obsessed with designing rules for *how* to do things that little ends up being built? Do we simply use the courtroom to get what we want? These are soul-searching questions we all must answer. But do not get me wrong: the *lawyerly* society is has its advantages — rule of law is needed for development, rights need to be protected, it is law that guarantees pluralism i.e. the ability of diverse cultures to coexist and thrive under equal protection, etc.

19. Do not get me wrong. The courts have commended SANs in deserving cases. For instance, the opening words of the leading judgment by His Lordship Kayode Eso, JSC (referring to Chief FRA Williams, SAN and GOK Ajayi, SAN) in *Chief FRA Williams v. Daily Times of Nig. Ltd*²⁶ (a libel suit against *Daily Times*) were to this effect:

This is a well argued appeal. We had the advantage of two top senior advocates (though one of them was a party to the action and therefore he appeared in person) excellent briefs and excellent oral submissions.

20. Quite a number of SANs have been very instrumental not just to ensuring access to justice but have contributed to the development of the law and the nation. And this has come in different facets. The Law Reports are littered

²⁴ *Ibid.*

²⁵ *Ibid.*

²⁶ [1990] LPELR-3487(SC); [1990] All NLR 1; [1990] 1 WRN 1.

with several landmark decisions of the courts where SANs were instrumental in setting the pace. The ferocity with which Chief Gani Fawehinmi SAN fought causes (as to the right of private citizens to initiate criminal proceedings²⁷, the constitutionality of NBA to ban members from appearing before a military Tribunal²⁸, the prolonged detention of suspects under the Robbery and Firearms Act²⁹, etc) using the courts is legendary. In *Abacha v. Fawehinmi*³⁰, Chief Gani Fawehinmi SAN was able to persuade the Supreme Court to hold that the African Charter enjoys a special constitutional status in Nigeria. This landmark ruling broadened the scope of enforceable rights in Nigeria and provided litigants with an additional avenue for justice.

21. Other SANs too have been in the vanguard of the struggle and advocacy for access to justice. In *Ogugu & ors v. The State*³¹, for instance, Chief FRA Williams SAN and others like Mr Sofola, SAN were instrumental in convincing the Supreme Court that the question, whether having stayed in prison confinement under a sentence of death for such an unreasonable length of time, from 28 February 1986 to date of judgment (14 October 1994), it would amount to inhuman and degrading treatment contrary to section 31(1) (a) of the 1979 Constitution [the equivalent to section 34(1)(a) of the 1999 Constitution] to uphold and execute the sentence of death passed on the 3rd appellant, cannot be answered by the Supreme Court as it was raised for the first time in that Court and so it lacked the jurisdiction to take the question. Hon. Justice Mohammed Bello, JSC, who delivered the leading judgment, expressed gratitude to all learned *amici curiae* in these words:

I should like to reiterate our gratitude to the learned *amici curiae* for the research, industry and learning in their submissions on the constitutional question. Although it has turned out that the court cannot in this appeal determine the question, nevertheless their effort has not been in vain. They have alerted the court to appreciate the gravity and

²⁷ *Fawehinmi v. Akilu & anor* [1987] LPELR-1257(SC); and *Akilu & anor v. Fawehinmi (No. 2)* [1989] LPELR-339(SC).

²⁸ *Fawehinmi v. NBA & ors* (No. 2) [1989] LPELR-1259(SC).

²⁹ *Mrs E. A. Lufadeju & anor v. Evangelist Bayo Johnson* [2007] LPELR-1795(SC) — although the Supreme Court upheld the committal procedure, the case triggered wider debates on the constitutionality of pre-trial detention, highlighting the role of SANs in spotlighting systemic injustice.

³⁰ [2000] LPELR-14(SC).

³¹ [1994] LPELR-2316(SC).

constitutional importance of the question. It is anticipated that the occasion for its determination is likely to be presented soon.

22. SANs have been in the forefront of using judicial processes to hold executive power of government (whether Federal or State) in check. Examples abound such as:

- In *Attorney-General of Lagos State v. Attorney-General of the Federation*³², several SANs argued for federalism and State autonomy over urban and physical planning. The decision here enhanced constitutional clarity on separation of powers and indirectly empowered citizens to seek redress under State legislation.
- Professor Yemi Osinbajo, SAN (as Attorney General of Lagos State) in *AG, Lagos State v. AG, Federation*³³ argued the case challenging Mr President's power to withhold revenue allocation to Lagos State given the creation of new Local Government Areas in Lagos State regarding Local Governments in that State without the National Assembly making the necessary consequential provisions in respect of any of the newly created Local Government Areas;
- Several SANs including Chief Kanu G. Agabi, SAN, Emmanuel C. Ukala, SAN, A. J. Owonikoko, SAN and A. U. Mustapha SAN were in *AG, Kaduna State & ors v. AG, Federation & ors*³⁴ involved in answering the question of the constitutional validity of the directives of Mr President directing the Central bank of Nigeria (CBN) to introduce redesigned Naira notes into circulation and withdraw old bank notes; and
- Lateef Fagbemi, SAN (Attorney General of the Federation & Minister of Justice) led a cream of SANs in seeking clarity in *AG, Federation v. AG, Abia State & ors*³⁵ on the question of Local Government autonomy in all its ramifications under the 1999 Constitution.

³² [2003] LPELR-620(SC).

³³ [2004] LPELR-10(SC).

³⁴ [2023] LPELR-59936(SC).

³⁵ [2024] LPELR-62576(SC).

23. And for the democratic process, and electoral justice, SANs have also played prominent roles. Chief FRA Williams SAN, for instance, chaired the Constitution Drafting Committee that gave birth to the 1979 Constitution, the precursor of the 1999 Constitution; and Professor Ben Nwabueze SAN's influence and contribution to constitutionalism in Nigeria is legendary. In electoral disputes, in cases like *Buhari & anor v. Obasanjo & ors*³⁶, notable SANs like Chief Afe Babalola SAN were frontline advocates; although the Supreme Court upheld the presidential election, the case underscored the critical role of SANs in testing electoral accountability. And in *Obi v. INEC & ors*³⁷, SANs like Dr O. Ikpeazu, SAN helped establish the principle that gubernatorial tenures run from the date of swearing-in, enhancing constitutional clarity and electoral justice.

24. As critical and contributory the SANs were to electoral justice, one cannot but voice out how, contrariwise, they have impacted negatively in that same process. In *Ngige v. INEC*³⁸, for instance, the Supreme Court acknowledged the difficulty of the burden of proof placed on the petitioner in an election petition, and then cautioned the petitioner to decide whether he wants to embark on this herculean task. Commenting on this stance of the Supreme, I underscored the point in an earlier write-up that it is easier for a camel to enter the eye of a needle than for a petitioner to succeed in an election petition where the petitioner is contesting the outcome of an election result; as election petitions are skewed against petitioners³⁹.

25. Yet, despite an emphatic case like *Ngige v. INEC*, virtually every election petition decision that constitutionally can be appealed against at the Supreme Court actually gets so appealed — and SANs are always involved in that decision. It is thus not unusual to read of comments like that of Simon Kolawole in his weekly Sunday back page article in THISDAY Newspaper of 14 August 2016: “It seems peculiar to Nigeria that election litigations go on

³⁶ [2005] LPELR-815(SC).

³⁷ [2007] LPELR-2166(SC).

³⁸ [2015] 1 NWLR (Pt. 1440) 281 at 313.

³⁹ B. B. Kanyip - “Election Petitions: the problematic of proof and the quest for electoral justice under the 2010 Electoral Act, as amended”, a commissioned paper for INEC Electoral Institute of Nigeria.

and on and on”⁴⁰. For purposes of our theme, *access to justice*, given cases like *Ngige v. INEC*, aside from the possible professional fees that may be lost, what does it take for a lawyer to advise his client that an election petition appeal stands little chance of succeeding?

IV

26. And so, despite the laudable contributions of SANs to access to justice and justice delivery in general, their roles have not been all rosy. Even in simple matters, their roles may be found wanting. Where good example needs to be shown, this may not be. SANs have thus been associated with delaying tactics that hinder access to justice. For instance, in *Saraki v. FRN*⁴¹, prosecution before the Code of Conduct Tribunal several SANs (as defence counsel) repeatedly raising preliminary objections and appeals, thus prolonging proceedings. While these were within legal rights, you cannot take away the fact that such tactics often frustrate timely justice, especially where SANs are retained by wealthy political elites.

27. The problem of theory deficit (the “disturbing inconsistencies and/or incoherencies neatly tucked away in the corpus of several decisions handed down by the [courts yielding] the legal space to confusing and subversive precedent”⁴²), which besets our jurisprudence, is thus accentuated by the advocacy of SANs.

28. Take as an example, the uncritical citation of case law authority in court, which remains a cause for serious concern. I note that this is one issue that is general to all lawyers. I had cause last year to complain about this as part of “my musings on administration of justice and justice delivery” in a Keynote Address I delivered in Kano⁴³. SANs, who should know better, and ought to

⁴⁰ Simon Kolawole – “Elections, Petitions and Distractions” available at <http://www.thisdaylive.com/index.php/2016/08/14/elections-petitions-and-distractions/> as accessed on 6 September 2025.

⁴¹ [2016] LPELR-40013(SC).

⁴² Peter Affen - “Judicialism in Nigeria: Gasping for Breath Under Our Watch”, a public lecture delivered under the auspices of Christian Lawyers Fellowship of Nigeria (CLASFON) Enugu Chapter in Honour of Hon. Justice Pearl Ifeyinwa Obiageli Enejere at Hon. Justice I. A. Umezulike Auditorium High Court Complex, Enugu on 20 May 2015. This paper was delivered when His Lordship was still a judge of the High Court of the Federal Capital Territory, Abuja.

⁴³ B. B. Kanyip - Keynote Address at the Nigerian Bar Association - Section on Legal Practice (NBA-SLP) 2024 Annual General Conference themed, *Administration of Justice Delivery in Nigeria: Challenges and Reforms*, and which held at Amani Event Centre, Kano, Nigeria from 2 to 5 June 2024.

show proper example, have been found wanting here, if what we see in court is anything to go by.

29. His Lordship Affen, JCA (writing extra-judicially as Judge of the High Court of the Federal Capital Territory) decried this where, for instance, election cases are cited as authority for normal civil cases. Hear His Lordship:

...case law is replete with citation of decisions in election cases as binding precedent in non-election cases. It would seem therefore that we have, by this singular act, diluted the quality of justice available in the generality of civil cases being resolved daily by the courts. This work submits that the insidious consequence of uncritical reliance on election cases [which are *sui generis*] in normal civil proceedings is that Nigerian jurisprudence is steadily, if not systematically, being rendered grotesque and unrecognisable. The point being made here is that whilst it is not out of place to cite and rely on decisions in ordinary civil proceedings to augment election cases where appropriate, there is everything wrong with the uncritical use of election cases in normal civil proceedings⁴⁴.

30. Given that election cases are *sui generis* i.e. they are in a class of their own, independent of other civil or criminal cases, why would lawyers (and of course the courts) use decisions in election cases as precedent for other types of cases? It is worrying, for instance, that lawyers would draw their case law examples from the world of politics when what is in issue is a workplace dispute. Two examples will suffice here.

31. The first is *Mr Igbinosun Friday Ese v. Auchu Polytechnic Auchu & 2 ors*⁴⁵. The case was a complaint against the dismissal of the claimant by the defendant. The defendant, however, challenged the suit on *inter alia* the ground that the suit was an abuse of court process since another similar case had earlier been filed by the claimant. I upheld the challenge to the jurisdiction of the court. In doing that, and for present purposes, this is what I

⁴⁴ Peter Affen - "Electoral Justice vs. Legal Justice in Nigeria: Do the Waters Mix?" (2020 - 2021) *Nigerian Current Law Review* 24 at page 45.

⁴⁵ Unreported Suit No. NICN/ABJ/148/2018, the ruling of which was delivered on 11 April 2019.

said at paragraph 30 about citing case law authorities from the world of politics:

The claimant talked of a consideration of the circumstances for bringing the suit thus intuiting that the circumstances of each case must be looked into. Yet the claimant drew his examples from the world of politics when he cited *Dapianlong v. Dariye* [2007] 8 NWLR (Pt. 1036) 239 at 322. One would have expected that the claimant would draw his examples from the world of work as this Court had just done to exemplify what the claimant should have done in the circumstance of his case. But no, the claimant preferred the world of politics where every minute issue is usually litigated given the high stakes that politicians have made of politics.

32. The second relates to section 40 of the 1999 Constitution, which provides as follows:

Every person shall be entitled to assemble freely and associate with other persons, and in particular he may form or belong to any political party, trade union or any other association for the protection of his interests...

33. Three bodies are conveniently covered under section 40 of the 1999 Constitution: political parties, trade unions, and associations registrable under the Companies and Allied Matters Act 2020. And all three are distinct and separate from any of the others. So, a trade union is not the same as “any political party” or “any other association”. To lump all these varying associations in one constitutional section often has the uncritical and unintended effect of treating all of them as one when judicial precedent is in issue.

34. The problem thus is that in interpreting section 40 of the 1999 Constitution, we often fall into the error of assuming that case law authorities dealing with “political party” or “any other association” such as associations registered under Part C of the Companies and Allied Matters Act (CAMA) necessarily apply in relation to trade unions. For instance, in *Beloxi Industries Limited v. National Union of Food, Beverage and Tobacco Employees (NUFBTE)*⁴⁶, a case dealing with non-recognition of a trade union and refusal

⁴⁶ Unreported Suit No. NICN/ABJ/386/2017, the judgment of which was delivered on 5 July 2019.

to implement the check-off dues system, the appellant's lawyer, relying on section 40 of the 1999 Constitution, cited as authority *Registered Trustees of the Association of Tippers and Quarry Owners of Nig v. Yusuf*⁴⁷, a case dealing with an association registered under Part C of CAMA. The NIC rejected this.

35. The Law Reports are replete with cases where courts have deprecated the conduct or advocacy of lawyers including SANs. Just last year, His Lordship Jauro, JSC deprecated the advocacy of proliferating issues in court by lawyers. In *Ishayaku Habibu v. The State*⁴⁸, the is what His Lordship said:

[T]he strategy of the appellant's counsel...is to raise any issue possible, real or imagined, against the judgment of the lower court. From those issues that may appear to be genuine complaints against the judgment of the lower court, to those that appear flimsy down to the outright ridiculous, he raised them all. This is not a good strategy. Counsel should always endeavor to do away with any insubstantial arguments and keep appeals within the limits of genuine and reasonable complaints, if any, arising from the decision appealed against.

36. Similarly, His Lordship Dimgba, JCA in *Ibrahim Yusuf Zakari Dan-Bauchi v. Nigeria National Petroleum Corporation Limited*⁴⁹, relying on *Shuaibu & anor v. Mailaya*⁵⁰ and *Igoi & ors v. Ajoke*⁵¹, deprecated the advocacy of litigating in piecemeal, taking a swipe at counsel, who filed differently two objections regarding the issue of limitation law, in these words:

The point about the suit being statute barred by virtue of the Limitation Act applicable in the FCT, in my view, is clearly wrong. The Limitation Act in question applicable in the FCT was always in existence as at 14/06/19 when the Respondent filed its first NPO, and could have been raised together with the issue of the suit being statute-barred by virtue of Section 2(a) of the POPA, and Section 12(1) of the NNPC Act. The

⁴⁷ [2011] LPELR-5024(CA).

⁴⁸ [2023] LPELR-60351(SC).

⁴⁹ [2024] LPELR-63071(CA).

⁵⁰ [2017] LPELR-43192(CA).

⁵¹ [2021] LPELR-58334(SC).

Respondent failed to do so. Quite apart from this being abusive of the judicial process, the act of raising this ground later having lost on other grounds of the objection amounts to nothing but litigating in piecemeal. And it is very wrong and abusive of the judicial process for counsel or litigants to litigate in piecemeal, bringing out their arsenal bit by bit rather than getting out all ammunition they intend to use in one instant in the battle of litigation to enable the opponent respond in full and afford the court the opportunity to consider all as a whole and take a decision so that there can be an end to litigation. This sort of practice casts a bad light on the legal profession and the practice of law, and does need to be serious deprecated and discouraged.

37. Litigating in piecemeal is thus one of many strategic blunders that we see even senior lawyers commit in the cases that come before the courts. It was His Lordship Eko, JSC in *Isitor v. Fakorade*⁵², who stated that strategic blunders by counsel in the conduct of a case should earn no sympathy from the court.

38. How a motion is couched and reliefs prayed for may tell on the advocacy of counsel. An appellant had applied to amend his notice of appeal. His Lordship as Galinje, JCA in *Pastor Isaac Omolehin v. Great Ajibade Industries Ltd*⁵³ condemned the appellant's counsel for smuggling an amendment without a prayer:

In the instant application, there is no prayer for amendment of the original notice of appeal by inserting the Court from whose decision the appeal is brought. However a close perusal of the proposed amended notice of appeal which is annexed to the supporting affidavit as Exhibit A, reveals that, the Appellant has craftily inserted therein "High Court of Justice of Kwara State Ilorin" and the name of the Judge that delivered the judgment, which he gave as Hon. Justice T. S. Umar. The attitude of learned Counsel here is condemnable as it [amounts] to an act of dishonesty. Learned Counsel is aware that a Court of law is not a charitable institution as its duty in civil matters is to render unto everyone according to his proven prayer. This is based on the fundamental principle of adjudication that a defendant must be given

⁵² [2018] All FWLR (Pt. 955) 494 at 507 - 509.

⁵³ [2013] LPELR-21373(CA).

opportunity to answer the claim against him and if need be to resist it. Where the amendment is smuggled in without a prayer for such amendment, the Respondent may inadvertently be denied the opportunity to proffer an answer to such an amendment as parties usually react to prayers...

39. As SANs, courts expect you to exercise qualitative supervision over junior counsel and staff in, and the processes that emanate from, your Law Offices. A recent decision of the Court of Appeal brings out this point. *Mr Godfrey Alile & ors v. Chief Assamese Adun*⁵⁴ was an application for the trinity prayers: extension of time to seek for leave to appeal; leave to appeal; and extension of time to appeal. For the applicants, Chief Dr Charles Uwensuyi-Edosomwan, SAN had formulated a sole issue for determination, thus: Whether this suit as constituted is proper for this Honourable Court to exercise its powers in granting its motion for extension of time for leave to appeal. And for the respondents, Emmanuel Olayiwola Afolabi, SAN, adopted this lone issue as formulated by the applicants.

40. His Lordship Hon. Justice Sirajo, JCA, who delivered the leading ruling, took time out to point out the anomalies in the issue as framed. Hear His Lordship:

...The use of the word “**Suit**” is inappropriate. Counsel also wrote: “**is proper for this Honourable Court to exercise its powers in granting its motion for extension**”. Counsel used the word “its” twice in formulating the lone issue for determination. It is clear to me and to every reader that the first “its”, as a possessive pronoun, refers to this Court. I have no difficulty in deciphering that. How about the second “its” then? This Court did not file any application so the second “its” could not have meant this Court. Conversely, the word “Applicants” has not been used throughout the issue formulated by the Applicants, therefore, the second “its” could not have referred to the Applicants. Herein lies the unprofessional manner in which the issue for determination was couched by the Applicants.

I do not believe that the learned senior counsel who signed the Written Address on behalf of the Applicants has gone through and vetted same

⁵⁴ Unreported Appeal No. CA/B/189M/2021, the ruling of which was delivered on 2 May 2025.

before appending his signature on it. I think this is an appropriate occasion for me to advice/warn Senior Advocates of Nigeria in particular and Senior Lawyers generally to be extremely careful on the current practice in some Law Firms that is fast gaining ground concerning the random use of their e-signatures by their Juniors in Chambers in signing court processes. Learned senior counsel must ensure that they vet every court process or any document for that matter which bears their signature before same is filed in Court or sent out of their Law Firm.

41. Lawyers, who prosecute frivolous cases (I alluded to *The Governor of Kogi State & anor v. Elder Achuba Simon* earlier in this paper), have even been reported to the Legal Practitioners Disciplinary Committee (LPDC) by the courts. *Bedding Holding Ltd v. Carew*⁵⁵ dealt with a lawyer who is not an SAN. But the point made there is relevant to all lawyers. The Court of Appeal described the conduct of the appellant's counsel, John Okoriko Esq., as "off-putting and discreditable professional conduct". At the time the appeal was filed, counsel "knew, or should have or ought to have known, that...the Tenancy Agreement he was using as excuse to file an appeal and keep his client and (probably himself) in possession and occupation of another person's hard earned property, unjustly, had run its full term and there was no factual basis to file and continue to sustain the appeal".

42. The Court of Appeal, after considering the National Judicial Policy (NJP) and the Rules of Professional Conduct for Legal Practitioners, deprecated this, and held thus:

Now, with the conduct of the Appellant's counsel in the filing and handling of this appeal, there is cause to believe, in my evaluation, that the gentleman lawyer, John Okoriko Esq., may have acted in ways that the attention of the authorities in charge of the discipline of lawyers should be drawn to our experience in this appeal. Keeping mute and inactive will surely be a betrayal of our duty as the gatekeepers of the temple of Justice. These class of unprofessional and mischievous acts have to be stemmed or stopped by all lawful means. As a result of that resolve, it is hereby ordered that the Chief Registrar of this Court should send the complete record of appeal, in this appeal, to the

⁵⁵ [2025] LPELR-81647 (CA).

President of the Court of Appeal, along with a copy of this judgment, for necessary disciplinary action to be taken or report to be made, against the gentleman John Okoriko Esq., for reasons recorded in this judgment...

43. The indiscriminate use of originating summons instead of the more appropriate complaint or writ of summons in activating suits is another sour point in advocacy — and cases have been lost just on that score. *All Progressives Congress v. Bashir Sheriff & 2 ors*⁵⁶ was commenced vide an originating summons at the Federal High Court. The 1st respondent got judgment in that court, which judgment was affirmed by the Court of Appeal. The Supreme Court, however, by a majority decision, upturned and set aside both judgments on the basis that the suit was commenced vide an inappropriate process, the originating summons, instead of the more appropriate process, the writ of summons.

44. I have criticised this Supreme Court decision elsewhere since in truth the filing of the case vide an originating summons was no fault of counsel. The Federal High Court Rules enjoined it. And in any event, it was a decision that did not factor earlier Supreme decisions that enjoin that even where an originating summons is inappropriately used, the order to make is not one of striking out but an order for pleadings to be filed⁵⁷.

45. But there is a sense in which originating summons is used by lawyers as a short-cut/quick-fix process. And we have seen a lot of it in labour dispute adjudication, unmindful of the fact that this has inherent drawbacks and flip-

⁵⁶ [2023] LPELR-59953(SC).

⁵⁷ *Ekanem & ors v. The Registered Trustees of the Church of Christ the Good Shepherd & ors* [2022] LPELR-59173(SC), where His Lordship Garba, JSC, who delivered the leading judgment, and relying on *Emezi v. Osuagwu* [2005] 12 NWLR (Pt. 939) 340 at 367, held thus:

I should however restate the trite position of the law that the use or employment of a wrong procedure or mode of commencement of action, does not, *ipso facto*, make or render the action incompetent or liable to be struck out. For instance where a suit was initiated or commenced by way of originating summons when the material facts involved are in serious and material dispute from the Affidavit evidence placed before a Court by the parties or likely to be in such dispute, the proper order to be made is not one striking out the suit on ground of improper mode of the commencement, but one for the parties to file pleadings in the matter for the requisite resolution of the dispute.

Incidentally, Garba, JSC, who made the above statement of law in *Ekanem & ors v. The Registered Trustees of the Church of Christ the Good Shepherd & ors*, was part of the majority decision in *All Progressives Congress v. Bashir Sheriff & 2 ors*.

See further *NEPA v. Ugabaja* [1998] 5 NWLR (Pt. 548) 106.

sides. His Lordship Ugo, JCA (delivering the leading judgment) in *University of Jos & anor v. Victor Aro*⁵⁸, relying on *Olley v. Tunji*⁵⁹, had generally cautioned and held thus:

...formulation of questions for determination is central to the validity of an originating summons...and it is essential that the particular question of construction between the parties be clearly identified in the body of the summons...

46. What this entails is that an originating summons is delimited by the questions posed⁶⁰. *A fortiori*, if the absence of questions to be determined makes an originating summons incurably defective, badly drafted questions would equally affect the outcome of the case in an originating summons proceedings⁶¹. And so a good case may otherwise be imperilled on the simple strategic blunder of having been commenced vide an originating summons. Lest we forget, the damages recoverable is often lower in a suit commenced vide an originating summons than it would be if the same case were to have been commenced vide a writ of summons or complaint, as the case may be.

47. Strategic blunders by lawyers including senior lawyers who either perpetrate them or allow them to pass due to poor supervision in their law offices abound. It is trite law that to succeed in a claim for special damages it must be not only specifically pleaded, it must be strictly proved by credible and compelling evidence⁶². Despite this, like I pointed out and cautioned recently in *Otokpa Ezekiel v. Nigerian Security and Civil Defence Corps & anor*⁶³, it has become a fashionable stratagem amongst lawyers claiming employment entitlements in terms of emoluments to simply ask in

⁵⁸ [2019] LPELR-46926(CA).

⁵⁹ [2013] 10 NWLR (Pt. 1362) 275 at 322.

⁶⁰ See *Sylvanus Eze v. University of Jos* [2012] LPELR-20072(CA), *NJC v. Hon. Justice Jubril Babajide Aladejana* [2014] LPELR-24134(CA), *Mahmud Bayo Alabidun v. President of the Federal Republic of Nigeria & anor* unreported Suit No. NICN/LA/74/2014, the judgment of which was delivered on 30 January 2015 and *Dr Dave Nwabor v. Oilflow Services Limited* unreported Suit No. NICN/LA/552/2015, the judgment of which was delivered on 10 July 2015.

⁶¹ See *Alo William Nwankwu v. Head of Civil Service of the Federation & anor* unreported Suit No. NICN/ABJ/321/2023, the judgment of which was delivered on 21 May 2024 at paragraph 136.

⁶² *NNPC v. Clifco Nigeria Ltd* [2011] LPELR-2022(SC), *7UP Bottling Company Plc v. Augustus* [2012] LPELR-20873(CA), *UTC Nig. Plc v. Samuel Peters* [2022] LPELR-57289(SC), *Luke N. Onyiorah v. Benedict C. Onyiorah & anor* [2019] LPELR-49096 (SC) and *Okafor & ors v. Obiwo & anor* [1978] LPELR-2413 (SC).

⁶³ Unreported Suit No. NICN/ABJ/159/2024, the judgment of which was delivered on 2 July 2025, at paragraph 41.

general terms for declarations and orders that their emoluments be computed and paid by the employer without indicting what the emoluments are and their quantum. This they do as a shortcut to a verdict, bypassing the burden of proof placed on them. By doing this, they do not have to prove as strictly required of them the quantum of what they ask for and how they arrived at it. This has placed additional and secondary burdens on the Court when judgments derived therefrom are sought to be enforced. New suits have to be filed in order to prove the quantum of what is the entitlement. This stratagem by legal practitioners is uncalled for and must be discouraged. It is one that does not help the claimant at all. Lawyers should accordingly wise up as they are doing more harm to their clients and access to justice than any good.

48. There is also this disheartening penchant for senior lawyers to allow persons either in their law firms or outside of it who do not have personal knowledge of facts of the case in issue to depose to affidavits in proof of cases. In the main, this will qualify as hearsay as was held by His Lordship Peter Affen, JCA in *Ibeto & anor v. Oguh*⁶⁴, relying on *Kate Enterprises Ltd v. Daewoo Nig Ltd*⁶⁵. Once again, an otherwise good case can be lost just on this ground.

49. Two additional related scenarios: the ill-advised practice of senior lawyers allowing junior lawyers or litigation clerks or secretaries to depose to facts intended to prove a case (where the case is appropriately commenced/activated) as they are not in any position to vouch for the truth or accuracy of information derived from clients; and lawyers or their clerks swearing to affidavits that originate suits; or that defend suits as in the case of counter-affidavits.

50. In *Dr Michael Ikuesan v. The Chief of Naval Staff & anor*⁶⁶, the joint counter-affidavit of the defendants was deposed to by a lawyer in the Law Firm of the defence counsel. The deponent in paragraph 3 of the counter-affidavit averred that the legal officer of the defendants perused the affidavit in support of the originating summons at the Nigerian Navy Headquarters on 21 February 2025. On the twin issues of the propriety of this and the

⁶⁴ [2022] LPELR-56803(CA).

⁶⁵ [1985] 2 NWLR (Pt. 5) 116.

⁶⁶ Unreported Suit No. NICN/ABJ/18/2025, the judgment of which was delivered on 8 May 2025.

competence of the counter-affidavit, relying on existing authorities⁶⁷, I held thus at paragraphs 73 and 81:

[73] ...As a prefatory point, I must state that where the law has no problem with lawyers in a matter deposing to affidavits, it clearly permits such. For instance, section 83(1) of the Sheriffs and Civil Process Act LFN 2004 permits a litigant or *his lawyer* to depose to an affidavit when applying for a garnishee order. *A fortiori*, where the law is silent, a lawyer cannot so depose to the affidavit. This is not just a matter of ethics as the defendants want this Court to believe. The authorities are clear on this.

[81] If no value can be placed on an affidavit sworn to by a legal practitioner, if such an affidavit can only be discountenanced, if counsel thereby endanger their clients' respective cases, and if such an affidavit is hearsay, it can only be that the defendants' counter-affidavit in the instant suit has no value and must be discountenanced. This done, it means that the case of the defendants in this suit is undefended as they have no valuable/competent counter-affidavit. It is my ruling, therefore, that the defendants' counter-affidavit in this suit is not competent and so is hereby discountenanced. I so hold.

51. Except where specifically allowed by law, it is accordingly wrong for lawyers or litigation clerks or secretaries to depose to facts intended to prove or defend a case. Cases or defences have been lost on this score as was the defence in *Dr Michael Ikuesan v. The Chief of Naval Staff & anor.*

52. In all this, there are aspects that are often lost sight of and not appreciated at all. The fact that it is a lawyer or litigation clerk or secretary that swore to the affidavit means that the claimant or defendant did not personally depose to the affidavit. And because affidavits are to be deposed to before a Commissioner of Oath, what this tells me is that the claimant or defendant feels too big to come before the Commissioner of Oath and take the oath. This is demeaning to the dignity of the profession and the court.

⁶⁷ Such as *Matthew & ors v. Chevron (Nig) Ltd* [2023] LPELR-59523(CA), *Akinlade & anor v. INEC & ors* [2019] LPELR-55090(SC), *First Trustees (Nig.) Ltd & ors v. Intels (Nig) Ltd & ors* [2022] LPELR-57080(CA), *Owners of MT Marigold v. NNPC* [2022] 7 NWLR (Pt. 1828) 165 SC at 196 - 197 and *Bwacha v. Kente & ors* [2022] LPELR-58989(CA).

53. Secondly, where it is a litigation clerk or secretary that deposed to the affidavit, it raises the question whether the litigant actually briefed such a litigation clerk or secretary. When a litigant is said to brief a lawyer, does he tell his story to the litigation clerk or secretary or to counsel in Chambers? So the first thing that comes to my mind once I see a deposition especially activating or defending a case by a litigation clerk or secretary is that the averments are hearsay since I do not believe that a litigant will sit before a litigation clerk or secretary and pour out his mind as to his case. Once again, because the deposition is not by the litigant, my point is that he is merely taking the profession and the court for a ride by feeling too big to make the deposition himself.

V

54. As I draw closer to the conclusion of this discourse, we need to cast our minds back to what access to justice is. It is the right and ability to resolve legal disputes thus ensuring that rights are respected especially through access to the courts, legal aid (where necessary) and other support services. This is necessary so that we have a just society by making the legal system functional for everyone. Challenges to access to justice such as lack of rights awareness, limited funding for legal advice, and complexity of the legal system itself must be kept at the barest minimum.

55. As SAN-designates, what have we done, what are we doing, and what will we do to make sure that we promote access to justice in all its ramifications? I know you all did *pro bono* work since that is part of the conditions for conferring the SAN rank. So, now that you will be conferred with the rank, does that mean that you will no longer feel obliged to continue with the *pro bono* work? As SANs, will your legal work be expensive as to make it beyond the reach of the vulnerable in the society?

56. And remember, society will now focus its eyes more on you now. Your personal life will command more attention. The dividing line between your personal and professional life is now very thin. As such, there is now a nexus between personal conduct and professional conduct in so much so that failings in one are necessarily failings in the other. Thus where you are found wanting in personal behavior, you may be punished by the profession even when the personal conduct complained of has no direct bearing with the legal profession.

57. Professor Webb⁶⁸ outlined the justifications for this to be: you cannot thereby be trusted; you do not thereby respect the law; you cannot thereby command the confidence of the court; you thereby undermine the public reputation of the profession; you are not thereby esteemed by your peers; you are thereby infamous; and you must thereby be denounced.

58. To Alice Woolley⁶⁹, these justifications can be loosely grouped into two broader categories: justifications based on a concern that the personal misconduct demonstrates a propensity for misconduct in legal practice; and justifications based on a concern that failing to discipline you for personal misconduct will bring the profession as a whole into disrepute. In other words, disciplinary justifications concerned with your trustworthiness, with respect for law, and with the need for the confidence of the court, all generally flow from the asserted relationship between personal and professional misconduct; and disciplinary justifications concerned with the public reputation of the profession, esteem from the your peers, infamy and denunciation, all generally relate to protecting the profession's reputation.

59. I note, however, that there exists a problem with this reasoning. Alice Woolley posits that when regulators claim a relationship between personal misconduct and a lawyer's legal practice they make two empirical assumptions⁷⁰. They assume a) that a single incident(s) of personal misconduct is demonstrative of a lawyer's general moral character and b) the moral character so demonstrated is indicative of the likelihood of immoral (unethical) conduct by the lawyer in his or her legal practice. Both of these empirical claims are highly doubtful. They rest on what social psychologists call the "fundamental attribution error." That is, the error that arises from the tendency for people to "seriously and routinely underestimate...both the number of observations and the distribution within them that is required to warrant the attribution of... character traits such as honesty"⁷¹. The

⁶⁸ As quoted in Alice Woolley – "Legal Ethics and Regulatory Legitimacy: Regulating Lawyers for Personal Misconduct", University of Calgary, January 22, 2009; available at http://papers.ssrn.com/sol3/papers.cfm?abstract_id=1331598 as accessed on 28 August 2025.

⁶⁹ *Ibid.*

⁷⁰ *Ibid.*

⁷¹ *Ibid.*

generalization inherent in this assumption may lead us to commit the fundamental attribution error when, without anything more, we discover that just because a friend has told us a lie, we conclude and attribute to him the vice of dishonesty; or when we see someone at a party eating too much food, we conclude and attribute to him the vice of greed; or when we see someone being kind to a disabled person, we conclude and attribute to him the general virtue of compassion. So when we talk about curtailing misconduct in the legal profession, we may need to pause and think of what misconduct we have in mind.

60. As we all ruminate over this, I want to draw the curtains with a caution or two:

- The practice of counsel appearing for a type of party today and the other type of party the following day should be strongly discouraged. For instance, in some disciplines of law such as consumer protection and labour law, it is anathema for a counsel whose practice is centered on representing consumers or workers to all of a sudden switch over to representing producers or employers, as the case may be. The cases of *Chief Philip O. Anatogu & 2 ors v. HRH Igwe Iweka II & ors*⁷² and *Onigbongbo Community v. Minister of Lagos Affairs*⁷³, for instance, frowned on counsel acting against a former client.
- And there are acts that are generally abhorring and so must be discouraged. For instance, the practice of casting aspersions on Judges⁷⁴, or not vetting briefs before they are filed⁷⁵ (I earlier alluded to the admonition of Sirajo, JCA in *Mr Godfrey Alile & ors v. Chief Assamese Adun*), or the reference by counsel to editor's summary of cases instead of the main body of a judgment⁷⁶. In all, as the courts have stated, it must be noted that the urge to do substantial

⁷² [1995] 8 NWLR (Pt. 415) 547 at 582 – 583.

⁷³ [1971] NCLR 186 at 192.

⁷⁴ *Bolanle Abeke v. The State* [2007] 3 SC (Pt. II) 105.

⁷⁵ *Sokoto State Government of Nigeria & 2 ors v. Kamdex Nigeria Limited* [2007] 3 SC (Pt. I) 94; *Tukur v. The Government of Taraba State & 2 ors* [1997] 6 NWLR (Pt. 510) 549 at 569; [1997] 6 SCNJ 81; *Gurara Securities & Finance Ltd v. T. I. C. Ltd* [1999] 2 NWLR (Pt. 589) 29 at 42 – 43 CA; and *Sofolahan & 5 ors v. Chief Folakan & 12 ors* [1999] 10 NWLR (Pt. 621) 86 at 96 CA.

⁷⁶ *Mrs Matilda Aderonke Dairo v. Union Bank of Nigeria Plc & anor* [2007] 7 SC (Pt. II) 97; and *Franchal (Nig.) Ltd v. N.A.B. Ltd* [2000] 9 NWLR (Pt. 671) 1.

justice does not include illegality or encouragement of the attitude of ‘anything goes’⁷⁷.

61. As I conclude, I wish to draw attention to a sour point of our profession. The legal (and accounting) profession is generally seen as enabler of financial misdeeds such as money laundering, terrorism financing and tax evasion/avoidance. Cases like *FBI Legal & anor v. FRN & ors*⁷⁸, did not portray the legal profession as a leading light. The concurring judgment of Hon. Justice Sir Biobele Abraham Georgewill, JCA was quite pungent. Hear His Lordship:

The services of the 2nd Appellant were procured, induced by the humongous amount of money up for the grab, solely for the purpose of getting those humongous funds out of the reach of the determined and focused investigators, even when the 2nd Respondent had no rational explanation to offer for the inflow of such a humongous amount into her Bank Account from her son. In law, out of an illegal act no legal or valid cause of action can arise. This position of the law is founded on the principle of public policy and expressed in the maxim: *ex turpi causa non oritur actio*, meaning that an action does not arise from a base cause...

In the circumstances of this appeal, it is true as aptly and unassailably submitted by learned counsel for the 1st Respondent that the Appellants knew very well the true and stinking character of the funds in the 2nd Respondents Bank account for which they were engaged to secure and keep away from the long arms of the law. So, should the Appellants be allowed to lawfully benefit and keep any amount, even a kobo, from such a humongous amount whose source was illegal and cannot be explained by the 2nd Respondent under the guise of payment of legal fees? I think not!

The legal profession, the noblest of all professions, would never consider such funds, illegal to the knowledge of the Appellants, to pass off as lawful payment of professional fees. Thus, neither the 1st Appellant nor the 2nd Appellant can be paid any legitimate legal fees or commission from funds which has been shown indisputably to be illicit

⁷⁷ *Emmanuel Okafor & 2 ors v. Augustine Nweke & 2 ors, supra*.

⁷⁸ [2022] LPELR-58590(CA) per the concurring judgment of Hon. Justice Sir Biobele Abraham Georgewill JCA.

funds and to the knowledge of the 1st and 2nd Appellants are funds which were clear proceeds of crime, notwithstanding the purposes to which such proved illicit funds are either put into or utilised. See Sections 18(2) and 20 of the Money Laundering (Prevention and Prohibition) Act 2020 . See also Sections 19 (1) and 74 of the Proceeds of Crime (Recovery and Management) Act 2022...

It follows therefore, since the source of the funds is clearly and indisputably illicit, as rightly found by the lower Court, no legitimate claim thereto can in law lie by either the perpetrator or his accomplices save by a victim, such as the Government or where the facts so permit and/or justify, an individual. See Section 18 of the Money Laundering (Prevention and Prohibition) Act 2022.

62. I have myself decried the use of the legal process, with the active involvement of lawyers, to legitimise illicit funds⁷⁹ despite cases like *ACB Ltd v. Alhaji Taofik Alao*⁸⁰, upheld by the Supreme Court in *Alhaji Taofik Alao v. ACB Ltd*⁸¹, which enjoin courts to guard against the promotion of illegality.

63. Most likely because of global fight against financial crimes and terrorism financing, cases *FBI Legal & anor v. FRN & ors*, and the need to step up its self-regulation (if it is not to be subject to external supervision) the NBA rose up to the challenge and came up with its *Guidelines and Rules on Anti-Money Laundering and Combating the Finance of Terrorism for Legal Practitioners*, provided as Chapter 2 of the Rules of Professional Conduct for Legal Practitioners 2023 (RPC)⁸².

⁷⁹ B. B. Kanyip - "Corporate Criminal Liability: Some Thoughts", a presentation on 6 September 2024 at the Cambridge International Symposium on Economic Crime, Jesus College, Cambridge, UK. Published as Justice Benedict Bakwaph Kanyip - "Corporate criminal liability: some thoughts" (2025) 46 *Company Lawyer* 115 - 121, Issue 4 © 2025 Thomson Reuters and Contributors.

⁸⁰ [1994] LPELR-14481(CA). This case relied on *George v. Dominion Flour Mills Ltd* [1963] 1 SCNLR 117 at 121, *Sodipo v. Lemminkainen OY* [1985] 2 NWLR (Pt. 8) 547 and *Sodipo v. Lemminkainen OY (No. 2)* [1985] 1 NWLR (Pt. 15) 220.

⁸¹ [1998] LPELR-407(SC); [1998] 3 NWLR (Pt. 542) 339; [1998] 1-2 SC 177.

⁸² See <https://ofy-lawyers.com/wp-content/uploads/2024/12/Review-of-the-Guidelines-and-Rules-on-Anti-Money-Laundering-and-Combating-the-Finance-of-Terrorism-for-Legal-Practitioners.pdf> as accessed on 14 September 2025.

64. As SANs that you will soon be and the leaders in the Bar that you are, it behoves on all you to bear the *Guidelines and Rules on Anti-Money Laundering and Combating the Finance of Terrorism for Legal Practitioners* in mind and keep to the tenets therein in full. The global perception of Nigeria as a country of scammers and hub for corruption should not be accentuated by the view that as legal practitioners, we are enablers.

65. I wish you well in your new rank. And be the new light of the legal profession in Nigeria.